

[doc. web n. 10084453]
Provision of November 13, 2024
Register of provisions
n. 666 of November 13, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,
containing the "Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX represented that following
his participation in a procedure for registration
in the list of external lawyers at the Provincial Health Authority of Enna (hereinafter "Health Authority"),
the Health Authority communicated to the interested party that, by Resolution of the General Director
No. XX of XX approving the
corporate list of external lawyers, he had been excluded
from the procedure "because he has been registered in the Bar for less than three years." The

complainant

also stated that “through the consultation of the electronic notice board of the Authority, [...] he found that [such resolution] published online included, in addition to the list of professionals included in the list [...], also that of the professionals excluded, with the indication next to each name of the reasons for exclusion.”

Subsequently, the interested party sent the Health Authority a request for deletion of his personal data pursuant to Article 17, paragraph 1, of Regulation 2016/679/EU, “arguing the unlawfulness of the processing carried out by the Authority through the publication of the names of the lawyers excluded from the procedure.”

2. The investigative activity.

In response to a request for information from the Authority (note prot. n. XX of XX, with note of XX, prot. n. XX, the Health Authority declared, in particular, that:

- “with Resolution No. XX of XX, the Corporate List of External Lawyers for the assignment of legal tasks was approved. Integral and substantial parts of this resolution were: - Annex A, that is, the list of professionals included in the list of external lawyers; - Annex B, that is, the list of professionals excluded from the list”;
- “this act was declared immediately executive in order to allow the assignment of legal tasks in compliance with the directives issued by the Health Department and also with what is established by Guidelines No. 12 “Assignment of legal services” approved by the Board of the National Anti-Corruption Authority, with resolution No. XX. These Guidelines, [...] expressly provide that [based on the principle of transparency, an adequate level of knowledge of the selection procedures must be guaranteed] in favor of every potential bidder, including the reasons that underlie the choices made by the administration, also in order to allow control over the impartiality of the selection” and regarding “advertising” it is stated that [...] the principle of publicity in question also requires the publication of the notice on the results of the selection”;
- “in resolution No. XX, considered in all its integral and substantial parts, sensitive data are not present [...]. The data in question subject to the publication contested by Attorney XX, namely the explicit reason for exclusion from the procedure (“Registration in the list for less than three years”) does not properly qualify as “sensitive data” as described in point 1 of Article 4 of Regulation

679/16. Furthermore, the data regarding the year of registration of lawyers in their respective Bar Associations are published and freely accessible by anyone on the websites of the Bar Associations throughout Italy as well as on the Unified List of Lawyers published on the website of the National Bar Council”;

- “it should also be clarified that Attorney XX, submitting the request for registration in the list the exercise of the rights of the data subjects, including the right to erasure, and to respond to requests without undue delay. The failure to respond to the request for the exercise of the right under Article 17 of the Regulation constitutes a violation of the obligations imposed on the data controller.

3.2. The assessment of the legality of the processing of personal data.

In light of the findings of the investigation, it is necessary to assess whether the processing of personal data by the Healthcare Authority was lawful. The dissemination of the complainant's personal data on the official website of the Healthcare Authority constitutes a processing operation that must comply with the principles set out in the Regulation.

4. Conclusion.

Based on the above considerations, it is concluded that the Healthcare Authority has violated the provisions of Articles 5, 6, and 17 of the Regulation, as well as Article 2-ter of the Code, by unlawfully disseminating the complainant's personal data and failing to respond to the request for erasure.

Consequently, the Authority is required to adopt appropriate measures to ensure compliance with the applicable data protection regulations and to prevent similar violations in the future.

the exercise of rights by the data subject as well as, in any case, to provide explicit feedback to the request made by the data subject, regardless of its validity, without unjustified delay and, in any case, no later than one month from its receipt, in the context of a direct relationship between the data subject and the data controller. The aforementioned term may be extended by the data controller for two months, if necessary, taking into account the complexity and number of requests, without prejudice to the right of the data subject to be informed of such extension and the reasons for the delay within one month from the receipt of the request (art. 12, paras. 2 and 3, of the Regulation). Furthermore, if the data controller does not comply with the request of the data subject, they must inform them without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedy (art. 12, para. 4, of the Regulation).

For the reasons stated above, it must be concluded that the Health Authority did not provide feedback to the request made by the data subject, resulting in a violation of art. 17 of the Regulation.

3.2. The dissemination of personal data. As evidenced by the documents and statements made by the data controller during the investigation, as well as the findings made based on the elements acquired, following the investigative activity and the subsequent assessments of this Department, the Health Authority published on its institutional website, from XX to XX, Resolution No. XX of XX approving the Corporate Register of External Lawyers, including annexes A and B containing respectively the list of professionals included in the Register of External Lawyers and the list of twenty professionals excluded from the Register, including the name of the complainant and the reason for their exclusion (e.g., not being registered with the Bar Association, not having submitted a curriculum vitae, not having submitted the application within the deadlines).

Regarding the legal basis that would justify the dissemination of the complainant's personal data, the Health Authority did not demonstrate the existence of a specific legal provision that obliges the publication of the list of professionals excluded from the register and the related reasons for exclusion. In this regard, it should be noted that the Authority has clarified on several occasions regarding the dissemination of common data that even the presence of a specific publicity regime (a circumstance that does not occur in this case) cannot lead to any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles concerning the protection of

personal data (see numerous measures including the provision of July 4, 2024, No. 404, doc. web 10050145 and the measures referenced therein). This is also confirmed by the personal data protection system contained in the Regulation, under which the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that they have done so (arts. 5, para. 2; 24 and 25, para. 2, Regulation).

For these reasons, the arguments presented in the defense writings of the Health Authority, which would derive the legitimacy of the publication of the aforementioned data from art. 53, paragraph 2, of L.R. No. 30 of November 3, 1993, which governs the management and publicity of acts in the health sector, nor from art. 32 of Law No. 69 of June 18, 2009, which concerns the “elimination of waste related to the maintenance of documents in paper form,” cannot be accepted, as there is no specific obligation for the publication of the lists of professionals to whom the administration deems not to confer an assignment in any of the cited norms.

Similarly, it is not possible to invoke, as a suitable premise for disseminating the list of those excluded, the circumstance that the complainant, “by submitting the application for registration in the list of Lawyers using the prepared form” has “consented to the processing of the above data by the Administration for internal use and in any case for the purposes of this application for selection,” as stated in the defense writings of the Health Authority, since the processing of data by a public entity finds its legal basis in the specific sector regulations and not in the consent of the data subjects, due to the imbalance in the relationship between the controller and the data subject (consideration No. 43 and art. 88 of the Regulation).

Furthermore, the fact that “the data relating to the year of registration of lawyers with their respective Bar Associations are published and freely accessible by anyone on the websites of the Bar Associations throughout Italy as well as on the Unified Register of Lawyers published on the website of the National Bar Council” does not allow, in any case, to consider the processing carried out by the Health Authority as lawful, since the knowledge and publicity of personal data must comply with the principle of “purpose limitation,” according to which personal data must be “collected for specified, explicit, and legitimate purposes, and subsequently processed in a manner that is not incompatible with those purposes” (art. 5,

****par. 1, lett. b) of the Regulation).****

In other words, the mere fact that personal information is made publicly available online does not imply that it can be freely reused by anyone for any purpose. It is necessary to evaluate on a case-by-case basis “whether, for what purposes, and under what limits and conditions any further uses of the personal data made public can be considered lawful in light of the ‘purpose principle’ and other principles of European origin concerning the protection of personal data” (see decisions of November 24, 2022, doc web 9839018, of March 25, 2021, n. 106, doc. web n. 9584421, and of March 12, 2020, doc. web n. 9429218).

In light of the above considerations, such behavior has resulted in the dissemination of personal data of the complainant and of nineteen other interested parties, in the absence of an adequate legal basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code, and without providing a response to the request for deletion of the data of the interested party, in violation of Article 17 of the Regulation.

****4. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to permit the closure of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor n. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Health Authority is noted for having disseminated online

the personal data of the complainant by publishing on its institutional website the list of professionals excluded from the register and the reasons for their exclusion, in the absence of an adequate legal basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code, and in violation of Article 17 of the Regulation.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, par. 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are all subject to the sanction provided for by Article 83, par. 5, of the Regulation, as also recalled by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, since the Health Authority has removed the aforementioned list from its institutional website on date XX, the conditions for the adoption of further corrective measures under Article 58, par. 2, of the Regulation do not apply.

****5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, par. 2, lett. i and 83 of the Regulation; Article 166, paragraph 7, of the Code). ****

The Guarantor, pursuant to Articles 58, par. 2, lett. i) and 83 of the Regulation as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case," and, in this context, "the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the website of the Guarantor pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Regulation of the Guarantor n. 1/2019).

In this regard, considering Article 83, par. 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, par. 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, par. 2, of the Regulation.

Considering that:

with specific regard to the nature, gravity, and duration of the violation, it should be noted that the dissemination of data concerned not only the complainant but also nineteen other interested parties with explicit indication of the reasons for exclusion (e.g., not being registered in the Bar Association, not having submitted the Curriculum Vitae, not having submitted the application within the deadlines), even though such publication occurred on the institutional website of the Health Authority without indexing on search engines (cf. Article 83, par. 2, lett. a), of the Regulation);

with specific regard to the subjective profile of the violation, the Health Authority acted under the erroneous belief of fulfilling a legal obligation despite the numerous indications provided by the Guarantor to all public entities since 2014 with the aforementioned guidelines (see also "Guidelines on the processing of personal data of workers for the purpose of managing the employment relationship in the public sector" of June 14, 2007, doc. web n. 1417809) (Article 83, par. 2, lett. b), of the Regulation); regarding the categories of personal data disseminated, not...

are included specific categories of data (art. 83, par. 2 lett. g) of the Regulation);

In light of this specific circumstance, it is believed that, in this case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That said, the following aggravating and mitigating circumstances must also be considered:

- there have been previous violations of the same provisions of the Regulation and the Code, albeit in different contexts (cf. art. 83, par. 2, lett. e), of the Regulation);
- the Health Authority has offered good cooperation with the Authority by stating that it has removed the list containing the participants excluded from the procedure, albeit following the Authority's request

for information (art. 83, par. 2, lett. f), of the Regulation);

- the violation occurred during a period characterized, particularly with reference to Health Authorities, by numerous organizational difficulties related to the issues of the emergency period characterized by the spread of the Sars Cov 2 virus (art. 83, par. 2, lett. k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary fine at €8,000 (eight thousand) for the violation of arts. 5, 6 of the Regulation, as well as 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also believed that, pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Authority's Regulation no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the extended period during which the aforementioned information has been published on the Health Authority's website, also following the lack of response to the complainant's request for the deletion of their personal data.

Finally, it is noted that the conditions of art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) pursuant to arts. 57, par. 1, lett. f) and 83, of the Regulation, finds the unlawfulness of the processing carried out by the Provincial Health Authority of Enna as stated in the reasoning, for the violation of arts. 5, 6, and 17 of the Regulation, as well as 2-ter of the Code (both in the text prior to the amendments made by the decree-law of October 8, 2021, in force at the time the dissemination of the personal data in question began, and in the current text);

ORDERS

b) pursuant to art. 58, par. 2, lett. i) of the Regulation, the Provincial Health Authority of Enna, represented by its legal representative pro tempore, located at Viale Armando Diaz, 7 - 94100 Enna (EN), C.F. 01151150867, to pay the sum of €8,000 (eight thousand) as an administrative monetary sanction for the violations indicated in this provision;

ORDERS

c) therefore the Provincial Health Authority of Enna to pay the aforementioned sum of €8,000 (eight thousand) according to the methods indicated in the annex, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981. It is noted that pursuant to art. 166, paragraph 8 of the Code, the infringer retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the term provided for the submission of the appeal as indicated below;

DISPOSES

d) pursuant to art. 166, paragraph 7, of the Code and art. 16, paragraph 1, of the Authority's Regulation no. 1/2019, the publication of the injunction order on the Authority's website;

e) pursuant to art. 154-bis, paragraph 3 of the Code and art. 37 of the Authority's Regulation no. 1/2019, the publication of this provision on the website of the Authority;

f) pursuant to art. 17 of the Authority's Regulation no. 1/2019, the annotation of the violations and the measures adopted in accordance with art. 58, par. 2 of the Regulation, in the internal register of the Authority provided for by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of legislative decree no. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, November 13, 2024

THE PRESIDENT

Stanzione

THE RAPPOREUR

Scorza

THE SECRETARY GENERAL

Mattei